

Illinois Medmal Whitepaper

AI Medical Malpractice Intake in Illinois: Section 2-622 Affidavits, Damage Caps, and Modified Comparative Fault

****State:**** Illinois

****Primary Statutes:**** 735 ILCS 5/2-622

****SOL:**** 2 years / 4-year repose

****Damage Caps:**** \$500,000/\$1,000,000

****Fault Doctrine:**** Modified comparative fault

#Executive Summary

Illinois medical malpractice law is shaped by three defining features: the Section 2-622 affidavit of merit requirement, tiered damage caps that vary by provider status, and modified comparative fault rules. The 4-year statute of repose - shorter than many states - creates urgency in case identification and screening. This whitepaper examines how AI-powered intake helps Illinois firms navigate these requirements.

#The Illinois MedMal Landscape

##Statute of Limitations and Repose

Illinois applies a 2-year statute of limitations with a 4-year statute of repose - meaning regardless of when the injury was discovered, no action may be brought more than 4 years after the alleged malpractice. This short repose period creates significant urgency for plaintiff firms to identify and screen potential cases quickly.

##Section 2-622 Affidavit of Merit

Illinois requires plaintiffs in medical malpractice actions to file an affidavit of merit (or a motion for extension) at the time of filing. The affidavit must:

- Be signed by a qualified medical professional
- State that the affiant has reviewed the medical records
- State that there is a reasonable and meritorious cause for filing the action

Failure to file a compliant 2-622 affidavit can result in dismissal with leave to refile.

##Damage Caps

Illinois applies structured damage caps:

- ****\$500,000**** against individual physicians
- ****\$1,000,000**** against hospitals and other institutions

These caps were challenged and upheld by the Illinois Supreme Court, making them a settled part of the litigation landscape.

#How LexiFlow Addresses Illinois's Unique Challenges

##Affidavit-Ready Merit Report

MeritScan generates a citation-backed preliminary merit report that provides the foundation for a compliant Section 2-622 affidavit. The AI identifies specific deviations from standard of care with source citations - exactly the evidence an affiant needs.

##Short Repose Compliance

Illinois's 4-year repose period means delay in case identification is especially costly. LexiFlow's 24/7 AI intake ensures no potential case languishes in the screening queue.

##Cap-Aware Valuation

The AI incorporates Illinois's tiered damage caps, distinguishing between cases against physicians (\$500K cap) and institutions (\$1M cap).

#ROI for Illinois Firms

Metric	Manual Process	LexiFlow AI
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Time to merit assessment	1-2 weeks	3 minutes
Affidavit preparation time	10-20 hours	1-2 hours (with AI prep)
Cost per case screened	\$1,200-\$1,800	\$75-\$150
Cases identified before repose	Limited by speed	Maximized by 24/7 AI

#Conclusion

Illinois's 4-year repose period and Section 2-622 affidavit requirements make rapid, accurate case screening essential. AI-powered intake gives Illinois firms the speed to identify cases before the repose deadline and the precision to produce affidavit-ready merit reports.

LexiFlow Legal Suite - \$69/month. leads@lexiflow.co